

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3523

By: Marti

AS INTRODUCED

An Act relating to social media platforms; providing definitions; prohibiting social media platforms from taking adverse action against user's page or account unless first providing notice, opportunity to be heard, and final decision; permitting social media platforms to impose a temporary restriction to prevent imminent harm; granting users a right to one internal appeal; creating a civil right of action; permitting the Attorney General to bring action; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 400 of Title 75A, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Social media platform" means any online platform that:

a. is primarily engaged in hosting user-generated content,

b. has more than one hundred million monthly active users worldwide, and

1 c. is accessible to users located in Oklahoma;

2 2. "User" means a person or entity lawfully using a social
3 media platform;

4 3. "Page" or "account" means a user profile, channel, page, or
5 similar presence used to publish or distribute content;

6 4. "Adverse action" means the suspension, deletion,
7 demonetization, shadow-banning, restriction, or permanent removal of
8 a page or account; and

9 5. "Emergency action" means a temporary restriction necessary
10 to prevent imminent harm.

11 SECTION 2. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 401 of Title 75A, unless there
13 is created a duplication in numbering, reads as follows:

14 A. A social media platform shall not take adverse action
15 against a user's page or account unless it first provides:

16 1. Electronic written notice specifying:

17 a. the precise rule allegedly violated,

18 b. the specific content at issue,

19 c. the evidence relied upon, and

20 d. the proposed action;

21 2. A meaningful opportunity to be heard, including:

22 a. not less than seven (7) business days to respond,

23 b. ability to submit evidence and written argument, and

24 c. review by a trained human decision-maker; and

1 3. An electronic written final decision stating:

2 a. findings of fact,

3 b. conclusions, and

4 c. the rule applied.

5 B. A platform may impose a temporary restriction without prior
6 hearing only when necessary to prevent imminent harm, provided:

7 1. Electronic written notice is provided within twenty-four
8 (24) hours;

9 2. A full and fair hearing is completed within seven (7) days;
10 and

11 3. If the platform fails to justify the action, the account
12 shall be fully restored.

13 C. Users shall have a right to one internal appeal of adverse
14 action taken against the user's page or account.

15 SECTION 3. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 402 of Title 75A, unless there
17 is created a duplication in numbering, reads as follows:

18 A. Any user aggrieved by a violation of this act may bring a
19 civil action to recover:

20 1. Actual damages;

21 2. Statutory damages of Ten Thousand Dollars (\$10,000.00) per
22 violation;

23 3. Injunctive relief; and

24 4. Reasonable attorney fees and costs.

1 B. The Attorney General may bring an action to:

2 1. Enjoin violations;

3 2. Recover civil penalties up to Twenty-five Thousand Dollars
4 (\$25,000.00) per violation; and

5 3. Require compliance audits.

6 SECTION 4. This act shall become effective November 1, 2026.

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